

CONTRACTOR'S **FINAL PAYMENT** AFFIDAVIT AND RELEASE

STATE OF FLORIDA
COUNTY OF _____

Before me, the undersigned authority, personally appeared Luz B. Polanco ("Affiant") who after being duly sworn deposes and says of his or her personal knowledge the following:

- A. Affiant is the Chief Fiancial Officer of AIO Enterprise, LLC, DBA, Lionize Construction, which does business in the State of Florida, hereinafter called the "Contractor." Affiant is fully authorized representative of Contractor, empowered to execute a full and final release of lien for Contractor and to otherwise bind Contractor as stated herein.
- B. Contractor, pursuant to a contract dated 09/10/2025 ("Contract") with Carlton Mallard, hereinafter referred to as the "Owner," has furnished or caused to be furnished labor, material, and services for the construction of certain improvements to real property as more particularly set forth in said contract on the project commonly known as:
3302 Chipco St Tampa, FL 33605
which encompasses the property described in the Notice of Commencement recorded at Instrument Number _____, Public Records of Hillsborough County, FL
- C. This Affidavit is executed by Contractor in accordance with §713.06(3)(d) of the Florida Statutes for the purposes of obtaining a final payment from the City of Tampa, Florida ("City"), which is acting as lender under the City's affordable housing programs, in the amount of \$ 147,335.42.
- D. All work to be performed under the contract has been fully completed, and all lienors under the direct contract have been paid in full, except the following listed lienor(s):

NAME OF LIENOR <i>(If no such lienors, please write "NONE" in the area(s) provided below)</i>	AMOUNT DUE
1. NONE	\$
2. NONE	\$
3. NONE	\$

- E. Except as specifically stated above Contractor certifies for itself and its subcontractors, materialmen, successors and assigns, that all charges for labor, materials, supplies, lands, licenses and other expenses for which Owner or the City might be sued or for which a lien or a demand against any payment bond might be filed, have been fully satisfied and paid. Contractor further certifies it has paid all its subcontractors and materialmen in full all amounts owed them from any previous payments received by Contractor from the City on Owner's behalf and has not withheld any such amounts. In the event Contractor withholds any unpaid amounts due its subcontractors and/or materialmen from the payment it receives with respect to its final payment request, Contractor agrees to immediately refund all such unpaid amounts to the City.
- F. In consideration of final payment and all other previous payments paid to Contractor, Contractor agrees to indemnify, defend and save harmless Owner and the City any and any Program Responsible Entity of City (PRE) from all demands or suits, actions, claims of liens or other charges filed or asserted against Owner, PRE, or the City by or through Contractor its subcontractors or materialmen, their successors and assigns, arising out of said Contract or the performance of the work covered by this Affidavit, including without limitation any claims of lien recorded by the undersigned and/or claims against payment bond made by the undersigned, for work performed before or after the date hereof.

Affiant Signature ‡

Date

Sworn, to and subscribed before me this _____ day of _____, 20 __, by _____ an authorized representative of Contractor, who is personally known to me or produced photo identification.

[AFFIX NOTARY SEAL]

Notary Public – State of Florida
My commission expires: _____